

PART III.

LOANS BY THE FISHERY BOARD FOR SCOTLAND.

Loans under the Crofters Holdings (Scotland) Act, 1886
(49 & 50 Vict. c. 29).

Name of Borrower.	Fishery District.	Amount of Loan.	Amount to be written off.
John Sutherland (Davie) and others	Helmsdale	£ s. d. 252 0 0	£ s. d. 26 5 0
John Macrae and others - -	Do. -	250 0 0	28 7 8
Alexander Oag and Henry Oag -	Wick -	253 11 6	19 5 2
Murdo McKenzie and others - -	Stornoway	279 0 0	3 1 3

CHAPTER 7.

An Act to provide for the establishment of Labour Exchanges and for other purposes incidental thereto.

[20th September 1909.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Power of Board of Trade to establish labour exchanges and to collect and furnish information.

1.—(1) The Board of Trade may establish and maintain, in such places as they think fit, labour exchanges, and may assist any labour exchanges maintained by any other authorities or persons, and in the exercise of those powers may, if they think fit, co-operate with any other authorities or persons having powers for the purpose.

(2) The Board of Trade may also, by such other means as they think fit, collect and furnish information as to employers requiring workpeople and workpeople seeking engagement or employment.

(3) The Board of Trade may take over any labour exchange (whether established before or after the passing of this Act) by agreement with the authority or person by whom the labour exchange is maintained, and any such authority or person shall have power to transfer it to the Board of Trade for the purposes of this Act.

(4) The powers of any central body or distress committee, and the powers of any council through a special committee, to establish or maintain, under the Unemployed Workmen Act, 1905, a labour exchange or employment register shall, after the expiration of one year from the commencement of this Act, not be exercised except with the sanction of, and subject to any

conditions imposed by, the Local Government Board for England, Scotland, or Ireland, as the case may require, and that sanction shall not be given except after consultation with the Board of Trade.

2.—(1) The Board of Trade may make general regulations with respect to the management of labour exchanges established or assisted under this Act, and otherwise with respect to the exercise of their powers under this Act, and such regulations may, subject to the approval of the Treasury, authorise advances to be made by way of loan towards meeting the expenses of workpeople travelling to places where employment has been found for them through a labour exchange. Regulations and management.

(2) The regulations shall provide that no person shall suffer any disqualification or be otherwise prejudiced on account of refusing to accept employment found for him through a labour exchange where the ground of refusal is that a trade dispute which affects his trade exists, or that the wages offered are lower than those current in the trade in the district where the employment is found.

(3) Any general regulations made under this section shall have effect as if enacted in this Act, but shall be laid before both Houses of Parliament as soon as may be after they are made, and, if either House of Parliament within the next forty days during the session of Parliament after any regulations have been so laid before that House resolves that the regulations or any of them ought to be annulled, the regulations or those to which the resolution applies shall, after the date of such resolution, be of no effect, without prejudice to the validity of anything done in the meantime under the regulations or to the making of any new regulations.

(4) Subject to any such regulations, the powers of the Board of Trade under this Act shall be exercised in such manner as the Board of Trade may direct.

(5) The Board of Trade may, in such cases as they think fit, establish advisory committees for the purpose of giving the Board advice and assistance in connexion with the management of any labour exchange.

3. If any person knowingly makes any false statement or false representation to any officer of a labour exchange established under this Act, or to any person acting for or for the purposes of any such labour exchange, for the purpose of obtaining employment or procuring workpeople, that person shall be liable in respect of each offence on summary conviction to a fine not exceeding ten pounds. Penalties for making false statements, &c.

4. The Board of Trade may appoint such officers and servants for the purposes of this Act as the Board may, with the sanction of the Treasury, determine, and there shall be paid out of moneys provided by Parliament to such officers and servants such salaries or remuneration as the Treasury may determine, and any expenses incurred by the Board of Trade in carrying this Act into effect, including the payment of travelling Expenses of the Board of Trade.

and other allowances to members of advisory committees and other expenses in connexion therewith, to such amount as may be sanctioned by the Treasury, shall be defrayed out of moneys provided by Parliament.

Inter-
pretation.

5. In this Act the expression "labour exchange" means any office or place used for the purpose of collecting and furnishing information, either by the keeping of registers or otherwise, respecting employers who desire to engage workpeople and workpeople who seek engagement or employment.

Short title.

6. This Act may be cited as the Labour Exchanges Act, 1909.

CHAPTER 8.

An Act to prohibit the landing and selling in the United Kingdom of fish caught in prohibited areas of the sea adjoining Scotland or Ireland. [20th September 1909.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Landing and
selling of fish
illegally
caught pro-
hibited.

1. From and after the expiration of one month from the passing of this Act it shall not be lawful to land or sell in the United Kingdom any fish caught by the methods of fishing known as beam trawling and otter trawling within prohibited areas as defined in this Act; and fish so caught within such areas shall be added to the table of prohibitions and restrictions contained in section forty-two of the Customs Consolidation Act, 1876, and upon being brought to land in the United Kingdom shall be dealt with as goods imported and brought into the United Kingdom contrary to the said prohibitions and restrictions.

39 & 40 Vict.
c. 36.

Presumption
that fish are
illegally
caught.

2. If a trawling or other vessel shall have been employed—

(a) in fishing by the methods and within the areas aforesaid; or

(b) in taking on board fish caught by the methods and within the areas aforesaid,

within two months prior to the landing or selling, or attempt to land or sell, fish therefrom in the United Kingdom, any fish on board such trawling or other vessel shall for the purposes of this Act be presumed to have been caught by the methods and within the areas aforesaid.

Fishery
Board to
notify.

3. The Fishery Board for Scotland shall from time to time notify to the Commissioners of Customs and Excise, or to the officer or officers of Customs and Excise stationed at such ports as may be deemed necessary, the names, numbers, or other means of identification of all vessels with regard to which the said